

		The <i>Mercury</i> court also held that the rules 2.550 and 2.551 of the Rules of Court, which it referred to in its opinion as the “sealed records rules,” do not apply to discovery materials that were not used at trial, and that were not used as a basis for adjudication. (<i>Mercury, supra</i>, 158 Cal.App.4th at pp. 100, 101.) Thus, there is no presumption of public access, and Defendant does not have to establish an overriding interest that would overcome the right of public access to the record. (Cal. Rules of Court, rule 2.550(d).) Moreover, allowing Plaintiff to evade the parties’ Stipulation and Protective Order, as well as the Court’s July 12, 2023 ruling that the underlying documents would be sealed, “would invite myriad discovery skirmishes,” as it would disincentivize parties from entering into protective orders that can be easily circumvented. (See <i>Mercury, supra</i>, 158 Cal.App.4th at pp. 98-99.) Plaintiff attempts to distinguish <i>Mercury</i> by arguing “unlike the factual statements supporting ASICS’ affirmative defense of fraud, the exhibits in <i>Mercury Interactive</i> ‘contain[ed] a significant amount of material other than what [was] excerpted in the Complaint,’ were ‘entirely unnecessary to the pleading,’ and were filed when the validity of the later-dismissed complaint was in question.” Plaintiff further argues that “the factual statements supporting ASICS’ affirmative defense of fraud in its Answer are not submitted in connection with a discovery motion or proceeding. Instead, they are submitted to establish the factual grounds for adjudicating ASICS’ defense to Shobacca’s breach of contract claim.” (Opposition, 2:26-3:15.) The Court finds these arguments unavailing. It matters not whether Plaintiff attached the sealed documents to its Answer, rather than merely referencing information obtained from the same sealed documents. This is a distinction without a difference. Further, the facts alleged in an Answer, much like the allegations of a Complaint, are not submitted as a basis for the adjudication of Defendant’s claims, or Plaintiff’s affirmative defenses. (<i>Mercury, supra</i>, 158 Cal.App.4th 60, 103.) Moving party to give notice.
8	Gatewood vs The Irvine Company, LLC	Application/Request TENTATIVE RULING: <u>Motion for Determination of Good Faith Settlement.</u>

		Defendants Steger, Inc. and Casco Contractors, LLC move for an order determining that the settlement between Plaintiff and Steger and Casco was reached in good faith pursuant to Code Civ. Proc. §§ 877 and 877.6, dismissing any and all pending cross-complaints against Defendants, and barring claims against Defendants for contribution or indemnity based on the incident that is the subject of this lawsuit. For the following reasons, the unopposed motion is GRANTED. It is incumbent upon the trial court to consider and weigh the <i>Tech-Bilt</i> factors only when the good faith nature of a settlement is disputed. Where “good faith” is not contested, a “barebones” motion which sets forth the grounds of good faith and is accompanied by a declaration setting forth a brief background of the case is sufficient. (<i>City of Grand Terrace v. Superior Court</i> (1987) 192 Cal.App.3d 1251, 1261.) Defendants has satisfied this minimal burden and no party has opposed the application. Defendants’ moving papers and supporting declaration adequately set forth the nature of the case and all pertinent facts, the settling parties’ relative litigation positions, and the barebones terms of the settlement. (See Motion and Becker Declaration.) The Court finds that the \$150,000 settlement payment is a reasonable, good faith settlement amount and dismisses all Cross-Complaints asserted against Defendants and any other claims for contribution or indemnity from any other party served with this motion. Moving Parties to give notice.
9	Truong vs Tran	<u>Motion for Sanctions</u> TENTATIVE RULING: Plaintiffs/Cross-Defendants Hai Hoang Truong and Thuy Phuong Nga To move for an order dismissing the SACC of Defendant/Cross-Complainant Paul T. Nguyen. For the following reasons, the motion is DENIED. <u>Safe Harbor Provision</u> Code of Civil Procedure section 128.7 contains a 21-day safe harbor requirement within which a party can withdraw or correct the challenged filing. (See Code Civ. Proc., § 128.7, subd. (c)(1).)